

25STCV24612 25STCV24612

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-09-10

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Case Number: 25STCV24612 Hearing Date: September 10, 2026 Dept: 415

Tentative Ruling

Judge Rolf M. Treu, Department 415

HEARING

DATE: September 10,

2026 TRIAL

DATE: Not set.

CASE: Sanchez v. Sanchez

CASE

NO.: 25STCV24612

DEMURRER TO

COMPLAINT

MOVING PARTY/PARTIES: Defendant Sergio Sanchez

RESPONDING PARTY/PARTIES: Plaintiff

Christy Sanchez

PROOF OF SERVICE:

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Plaintiff opposes the demurrer on

the merits, and thereby waived any procedural objections. (See *In re Marriage of Falcone* (2008)

164 Cal.App.4th 814, 826.)

CASE HISTORY:

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August 21, 2025: Complaint filed.

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January 12, 2026: Case stayed
pending resolution of Sanchez
v. Sanchez (Super.
Ct. Orange County, 2023, No. 23WHFL01949).

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February 26, 2026: Stay lifted.

STATEMENT OF MATERIAL FACTS AND/OR
PROCEEDINGS:

Plaintiff

Christy Sanchez ("Plaintiff") is the former spouse of Defendant Sergio Sanchez ("Defendant"). Plaintiff sued Defendant in connection with ownership of properties Plaintiff contends were marital assets. Defendant demurs to the complaint. Plaintiff opposes the demurrer.

TENTATIVE RULING:

Defendant's

demurrer to the complaint is SUSTAINED without leave to amend.

Moving

party to give notice.

DISCUSSION:

Demurrer to Complaint

"It is black letter law that a
demurrer tests the legal sufficiency of the allegations in a complaint."

(Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) In ruling on a demurrer, the court must “liberally construe[]” the allegations of the complaint. (Code Civ. Proc., § 452.)

“This rule of liberal construction means that the reviewing court draws inferences favorable to the plaintiff, not the defendant.” (Perez v. Golden Empire Transit Dist. (2012) 209 Cal.App.4th 1228, 1238.)

Family
law case

Plaintiff and Defendant were parties to a marital dissolution action: Sanchez v. Sanchez (Super. Ct. Orange County, 2023, No. 23WHFL01949). Defendant argues Plaintiff’s complaint in this matter is an improper attempt to re-litigate the issues of the dissolution action. Claims stemming directly from a family law case belong in family court, even if the claims could be pleaded as general civil causes of action. “Almost all events in family law litigation can be reframed as civil law actions if a litigant wants to be creative with various causes of action. It is therefore incumbent on courts to examine the substance of claims, not just their nominal headings.” (Neal v. Superior Court (2001) 90 Cal.App.4th 22, 25-26.)

Plaintiff alleges that Celia Sanchez (“Sanchez”), Defendant’s mother, created Monser LLC (“Monser”) to hold real estate assets. Plaintiff alleges that Defendant represented to Plaintiff that Defendant would receive a 24% interest in Monser as compensation for work as a property manager, and that Plaintiff and Defendants were part owners of the properties in Monser. Plaintiff alleges that the assets in Monser were gifts from Sanchez to Defendant, and thereby classified as Defendant’s separate property. (Complaint, ¶¶ 7-8, 12-13.) Plaintiff alleges that Defendant thereafter told Plaintiff that Sanchez pressured Defendant into signing documents to transfer his interest in Monser to his sister in the event of Defendant’s death, but that Defendant did not sign the paperwork. Plaintiff alleges that Defendant thereafter signed documents to transfer his interests in Monser to his sister without Plaintiff’s knowledge. (Complaint, ¶¶ 15, 17.) Plaintiff alleges that she learned that Defendant’s interests in Monser were Defendant’s separate property during divorce discovery. (Complaint, ¶ 33.) As such, Plaintiff’s claims in this

action stem directly from the distribution of marital property in *Sanchez v.*

Sanchez (Super. Ct. Orange County, 2023, No. 23WHFL01949). Although Plaintiff captions her claims in this matter as tort claims, Plaintiff's claims are in fact claims regarding distribution of marital property.

Accordingly, the Court sustains the demurrer to Plaintiff's claims without leave to amend.

Family

Code section 852

Defendant argues that Plaintiff's claims fail under Family Code section 852.

Family Code section 852 sets forth the requirements for a valid transmutation of real or personal property from community property to separate property, from separate property to community property, or from the separate property of one spouse to the separate property of the other spouse. (Family Code, § 852.) Here, the Court cannot reach the issue of

whether any transaction at issue was valid under Family Code section 852, as family court must make such a determination.

However, the potential applicability of Family Code section 852 underscores that Plaintiff cannot bring these claims in civil court.

First

cause of action: fraud

Plaintiff's eighth cause of action is for fraud. Plaintiff must allege fraud with particularity. "This means:

(1) general pleading of the legal conclusion of fraud is insufficient; and (2) every element of the cause of action for fraud must be alleged in full, factually and specifically, and the policy of liberal construction of pleading will not usually be invoked to sustain a pleading that is defective in any material respect." (*Wilhelm v. Pray*,

Price, Williams & Russell (1986) 186 Cal.App.3d 1324, 1331.) There are four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts." (*LiMandri v.*

Judkins (1997) 52 Cal.App.4th 326, 336, internal quotations and citations omitted.) Here, Plaintiff alleges that

Defendant “concealed from Plaintiff that in April and July of 2017, he executed documents (specifically a trust) transferring his interest in LLC to his sister and nullifying the 2016 will and Plaintiff’s and Defendant’s estate plan, after repeatedly reassuring Plaintiff that he had not and would not take any action excluding her.” (Complaint, ¶ 37.) As Plaintiff and Defendant were spouses and therefore in a confidential relationship, these allegations could support a cause of action for fraud. However, as set forth above, the Court cannot adjudicate the disposition of marital property.

As such, Plaintiff’s claim for fraud fails as a matter of law.

Defendant also argues that the statute of limitations bars Plaintiff’s claim for fraud. Defendant is incorrect. Under the delayed discovery rule, a claim does not accrue until “a plaintiff knew or should have known of the wrongful conduct at issue.” (April

Enterprises, Inc. v. KTTV (1983) 147 Cal.App.3d 805, 832.) As set forth above, Plaintiff alleges that Plaintiff did not learn of Defendant’s concealment of pertinent facts until discovery in the dissolution action. As

such, Plaintiff alleges facts to show that Plaintiff’s claims are timely. However, this is immaterial, as Plaintiff cannot litigate family law claims in this civil action.

Second

cause of action: negligent misrepresentation

Plaintiff’s second cause of action

is for negligent misrepresentation. To

state a cause of action for negligent misrepresentation, Plaintiff must allege that Defendant asserted a false fact, which Defendant believed to be true without reasonable grounds for that belief, that Defendant intended to induce Plaintiff’s reliance on the false fact, that Plaintiff justifiably relied on the false fact, and Plaintiff sustained damages. (Melican v. Regents of Univ. of Cal. (2007) 151 Cal.App.4th 168, 182.) As set

forth above, Plaintiff alleges that Defendant represented to Plaintiff that Defendant would receive a 24% interest in Monser as compensation for work as a property manager, and that Plaintiff and Defendants were part owners of the properties in Monser. Plaintiff alleges

that the assets in Monser were actually gifts from Sanchez to Defendant, and thereby classified as Defendant’s separate property. (Complaint, ¶¶ 46-48.) Plaintiff alleges that if Defendant believed these facts to be true, Defendant lacked reasonable grounds for that

belief. (Complaint, ¶¶ 48, 52.) Plaintiff alleges that she detrimentally relied on these representations because she did not seek financial support outside of the marriage. (Complaint, ¶ 72.) These allegations could support a claim for negligent misrepresentation.

However, as set forth above, the Court cannot adjudicate claims based on the disposition of marital property.

Accordingly, Plaintiff's claim for negligent misrepresentation fails as a matter of law.

Third

cause of action: breach of fiduciary duties

To state a claim for breach of fiduciary duties, Plaintiff must allege facts showing that the parties had a confidential, fiduciary relationship. (Zumbrun v. Univ. of So. Cal. (1972) 25 Cal.App.3d 1, 13.) Here, Plaintiff alleges Plaintiff and Defendant were married. As such, Plaintiff alleges that Plaintiff and Defendant were in a confidential relationship. However, Plaintiff's claim for breach of fiduciary duties is based on Defendant's alleged transfer of marital property. (Complaint, ¶ 82.) As such, the remedies for Plaintiff's claim are set forth in Family Code sections 721 and 1100. The Court cannot resolve the claim, which belongs in family court.

Accordingly,

Defendant's demurrer to the complaint is SUSTAINED without leave to amend.

Moving

party to give notice.

IT

IS SO ORDERED.

Dated: September 10, 2026 _____

Rolf M. Treu

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at SMCDept415@lacourt.ca.gov by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.